

Court No. - 9

Case :- WRIT - C No. - 64797 of 2009

Petitioner :- Shailendra Kumar

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Hari Shanker Mishra

Respondent Counsel :- C.S.C.,H.P.Dube

Hon'ble Vijay Manohar Sahai,J.

Hon'ble Sudhir Agarwal,J.

We have heard Shr Hari Shanker Mishra learned counsel for the petitioner, learned standing counsel appearing for respondents no.1 to 3 and Shri H.P. Dube learned counsel appearing for respondents no.4 and 5.

Shri Dube contesting for the Power Corporation states that since the question of law raised in this matter is also covered by a division bench of this court, the writ petition may be heard and disposed of finally at this stage under the Rules of the Court, hence we proceed accordingly.

It is contended by the learned counsel for the petitioner that the impugned assessment and recovery has been made without issuing any show cause notice, giving details as to how the assessing authority arrived at the amount sought to be assessed against the petitioner pursuant to the checking dated 6.11.2007. He submits that the assessment notice dated 17.12.2007 issued is illegal unless it mentions the details and break up of the total assessed amount showing as to how such an amount could be calculated by the assessing authority so that the petitioner could give an effective reply. The respondents did not give any adequate opportunity to the petitioner to file his reply/objection as required. He urged that under clauses of the Electricity Supply Code, 2005, the entire proceedings are illegal. He placed reliance on a division bench decision of this court in Ashok Kumar and others vs. State of U.P. and others 2008 ADJ (6) page 660 and submitted that in view of law laid down therein the assessment proceedings being illegal are liable to set aside.

Shri Dube learned counsel appearing on behalf of U.P. Power Corporation, respondents no.4 and 5 could not defend the impugned assessment proceedings and submitted that the matter may be remanded to the assessing authority to proceed a fresh, in accordance with law.

The Division Bench in Ashok Kumar case (supra) has considered the procedure for assessment provided in the Electricity Supply Code, 2005. Since from the perusal of the record it is evident that the procedure as laid down in the U.P. Electricity Supply Code, 2005 has not been followed, the impugned recovery is also in violation of the provisions contained in U.P. Electricity Supply Code, 2005, in view of the law laid down by the this court in Ashok Kumar (supra).

The writ petition accordingly allowed. The assessment order dated 17.12.2007 as well as the recovery proceedings including citation dated 15.9.2009 are hereby quashed. The Assessing Authority shall be at liberty to proceed a fresh after giving opportunity to the petitioner and pass a fresh order, in accordance with law.

Order Date :- 2.12.2009

vs